

25TRCV03018 25TRCV03018

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-03

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Case Number: 25TRCV03018 Hearing Date: August 3, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Monday – August 3, 2026

Calendar No.

PROCEEDINGS

City

of Rancho Palos Verdes v. Shahzad Khaligh, et al.

25TRCV03018

1. Shahzad Khaligh's Motion to Dismiss Service of Process
and Dismiss Action Against Ray H. Bartlett Trustee of the Toufer Arrowroot
Trust

2. Shahzad Khaligh's Motion to Disqualify Counsel

3. Shahzad Khaligh's Motion to Continue Hearing on Motion
for Summary Judgment

4.

Shahzad Khaligh's

Request for Rehearing of Unresolved Motions, Oppositions, and Unsigned
Tentative Rulings

TENTATIVE RULING

Shahzad Khaligh's Motion to Dismiss Service of Process
and Dismiss Action Against Ray H. Bartlett Trustee of the Toufer Arrowroot
Trust is denied.

Shahzad Khaligh's Motion to Disqualify Counsel is
denied.

Shahzad Khaligh's Motion to Continue Hearing on Motion
for Summary Judgment is granted.

Shahzad Khaligh's Request for Rehearing of Unresolved
Motions, Oppositions, and Unsigned Tentative Rulings is denied.

Background

Plaintiff's Complaint was filed on September 4, 2025.
Plaintiff alleges the following facts. Defendant has obstructed and interfered
with the City's Wildlife Corridor Property. Plaintiff alleges the following
causes of action: 1. Public Nuisance Per Se; 2. Public Nuisance; 3. Public
Nuisance - Trespass.

Defendant Shaligh filed an Answer on November 4, 2025.
On November 20, 2025, Defendant filed a Motion for Leave to Amend Answer.
Defendant filed a Cross-Complaint on November 25, 2025. Defendant filed an
Amended Answer on December 12, 2025. Plaintiff filed a Demurrer to Answer on
December 16, 2025.

Motion to Quash

Code Civ. Proc., § 415.10 states:

"A summons may be served by personal delivery of a
copy of the summons and of the complaint to the person to be served. Service of
a summons in this manner is deemed complete at the time of such delivery. The
date upon which personal delivery is made shall be entered on or affixed to the

face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective.”

Code Civ. Proc., § 415.20 states, in relevant part:

“(a) In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(b) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(c) Notwithstanding subdivision (b), if the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code.” Code Civ. Proc., § 415.20.

Code Civ. Proc., § 416.90 states:

“A summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.”

Code Civ. Proc., § 418.10 states, in relevant part:

“(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

“Section 418.10, subdivision (a) (§ 418.10(a)), entitles a defendant to move to quash “on or before the last day of [the movant’s] time to plead or within any further time that the court may for good cause allow.” In re Marriage of Obrecht (2016) 245 Cal.App.4th 1, 16.

“The notice shall designate, as the time for making the motion, a date not more than 30 days after filing of the notice. The notice shall be served in the same manner, and at the same times, prescribed by subdivision (b) of Section 1005. The service and filing of the notice shall extend the defendant’s time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant’s time to plead for an additional period not exceeding 20 days.” Code Civ. Proc., § 418.10(b).

Pursuant to CCP § 418.10(a)(1), Defendant Khalid moves to quash service of the summons and complaint on the following grounds. “The Court lacks personal jurisdiction over the trustee because the service is void as the trustee had vacated the office at the time of service, and lacked standing.” (Notice of Motion, p. 1, lines 22-24).

The Court notes that proof of service of the summons and complaint as against Ray H. Bartlett was filed on September 25, 2025 indicating service by personal service on September 20, 2025.

When a Defendant challenges the Court’s personal jurisdiction on the grounds of improper service of process the burden is on the

Plaintiff to prove the facts of effective service." Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413. Plaintiff must meet this burden by a preponderance of the evidence. See Ziller Elec. Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.

"In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439. "A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808. "Service of a substantially defective summons does not confer jurisdiction over a party and will not support a default judgment. Notice of the litigation does not confer personal jurisdiction absent substantial compliance with the statutory requirements for service of summons." MJS Enterprises, Inc. v. Super. Ct. (1984) 153 Cal.App.3d 555, 557 (internal citations omitted). "When a defendant challenges [the court's] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-40.

The motion is denied because Defendant Khaligh has no standing to file a motion to dismiss or a motion to quash service on behalf of a completely different party. Further, even though it's not relevant for purposes of this motion because the moving party has no standing to bring this motion, the moving party provided no competent evidence to establish her theory that Ray Bartlett resigned as the trustee. Moving party cites to CCP § 416.90 but as noted above, this section has no bearing on the arguments attempted to be advanced by the moving party.

Thus, for the foregoing reasons, Defendant Shahzad Khaligh's motion to dismiss service of process and dismiss action against Ray H. Bartlett is denied.

Motion to Disqualify Counsel

The court weighs various factors in deciding whether to grant a motion to disqualify: (1) the party's right to counsel of choice; (2) the attorney's interest in representing the client; (3) the financial burden of changing counsel; (4) any tactical abuse underlying a disqualification motion; (5) the principle that fair resolution of disputes requires vigorous representation of parties by independent counsel. *Mills Land & Water Co. v. Golden West Refining Co.* (1986) 186 Cal.App.3d 116, 126.

"Since the purpose of a disqualification order must be prophylactic, not punitive, the significant question is whether there exists a genuine likelihood that the status or misconduct of the attorney in question will affect the outcome of the proceedings before the court. Thus, disqualification is proper where, as a result of a prior representation or through improper means, there is a reasonable probability counsel has obtained information the court believes would likely be used advantageously against an adverse party during the course of the litigation." *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 308-09.

"Issues of disqualification often arise when an attorney has a conflict of interest, such as when the attorney has been exposed to confidential information of a former client who is in an adverse position in current litigation. A motion to disqualify counsel brings the client's right to the attorney of his or her choice into conflict with the need to maintain ethical standards of professional responsibility.

Disqualification motions implicate several important interests, among them are the clients' right to counsel of their choice, the attorney's interest in representing a client, the financial burden of replacing a disqualified attorney, and tactical abuse that may underlie the motion. The paramount concern in determining whether counsel should be disqualified is the preservation of public trust in the scrupulous administration of justice and the integrity of the bar. It must be remembered, however, that disqualification is a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety. The purpose of disqualification is not to punish a transgression of professional ethics. Disqualification is only justified where the misconduct will have a continuing effect on judicial proceedings." *Sheller v. Superior Court* (2008) 158 Cal.App.4th 1697, 1710–11 (internal citations and quotations omitted).

"Standing generally requires that the [moving party] be able to allege injury, that is, an invasion of a legally protected

interest. A standing requirement is implicit in disqualification motions. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney. [A]bsent an attorney-client relationship, the moving party must have an expectation of confidentiality. For purposes of a disqualification motion, [s]tanding arises from a breach of the duty of confidentiality owed to the complaining party, regardless of whether a lawyer-client relationship existed. Thus, some sort of confidential or fiduciary relationship must exist or have existed before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information.” *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356 (internal citations and quotations omitted).

“[W]here the ethical breach is manifest and glaring and so infects the litigation in which disqualification is sought that it impacts the moving party's interest in a just and lawful determination of [his or] her claims, a nonclient might meet the standing requirements to bring a motion to disqualify based upon a third party conflict of interest or other ethical violation.” *Kennedy v. Eldridge* (2011) 201 Cal.App.4th 1197, 1204 (internal quotations omitted). “[W]here an attorney's continued representation threatens an opposing litigant with cognizable injury or would undermine the integrity of the judicial process, the trial court may grant a motion for disqualification, regardless of whether a motion is brought by a present or former client of recused counsel.” *Id.* at 1205. “We detect a common theme in the cases relating to disqualification of attorneys by trial courts. If the status or misconduct which is urged as a ground for disqualification will have a continuing effect on the judicial proceedings which are before the court, it is justified in refusing to permit the lawyer to participate in such proceedings.” *Chronometrics, Inc. v. Sysgen, Inc.* (1980) 110 Cal.App.3d 597, 607.

“[D]isqualification usually imposes a substantial hardship on the disqualified attorney's innocent client, who must bear the monetary and other costs of finding a replacement. A client deprived of the attorney of his choice suffers a particularly heavy penalty where, as appears to be the case here, his attorney is highly skilled in the relevant area of the law. [¶] Additionally, as courts are increasingly aware, motions to disqualify counsel often pose the very threat to the integrity of the judicial process that they purport to prevent. Such motions can be misused to harass opposing counsel [], or to intimidate an adversary into accepting settlement on terms

that would not otherwise be acceptable. In short, it is widely understood by judges that attorneys now commonly use disqualification motions for purely strategic purposes" *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 300–301 (internal citations and quotations omitted).

Gov. Code, § 8314 states:

"(a) It is unlawful for any elected state or local officer, including any state or local appointee, employee, or consultant, to use or permit others to use public resources for a campaign activity, or personal or other purposes which are not authorized by law.

(b) For purposes of this section:

(1) "Personal purpose" means those activities the purpose of which is for personal enjoyment, private gain or advantage, or an outside endeavor not related to state business. "Personal purpose" does not include the incidental and minimal use of public resources, such as equipment or office space, for personal purposes, including an occasional telephone call.

(2) "Campaign activity" means an activity constituting a contribution as defined in Section 82015 or an expenditure as defined in Section 82025. "Campaign activity" does not include the incidental and minimal use of public resources, such as equipment or office space, for campaign purposes, including the referral of unsolicited political mail, telephone calls, and visitors to private political entities.

(3) "Public resources" means any property or asset owned by the state or any local agency, including, but not limited to, land, buildings, facilities, funds, equipment, supplies, telephones, computers, vehicles, travel, and state-compensated time.

(4) "Use" means a use of public resources which is substantial enough to result in a gain or advantage to the user or a loss to the state or any local agency for which a monetary value may be estimated.

(c)(1) Any person who intentionally or negligently violates this section is liable for a civil penalty not to exceed one thousand dollars (\$1,000) for each day on which a violation occurs, plus three times the value of the unlawful use of public resources. The penalty shall be assessed

and recovered in a civil action brought in the name of the people of the State of California by the Attorney General or by any district attorney or any city attorney of a city having a population in excess of 750,000. If two or more persons are responsible for any violation, they shall be jointly and severally liable for the penalty.

(2) If the action is brought by the Attorney General, the moneys recovered shall be paid into the General Fund. If the action is brought by a district attorney, the moneys recovered shall be paid to the treasurer of the county in which the judgment was entered. If the action is brought by a city attorney, the moneys recovered shall be paid to the treasurer of that city.

(3) No civil action alleging a violation of this section may be commenced more than four years after the date the alleged violation occurred.

(d) Nothing in this section shall prohibit the use of public resources for providing information to the public about the possible effects of any bond issue or other ballot measure on state activities, operations, or policies, provided that (1) the informational activities are otherwise authorized by the constitution or laws of this state, and (2) the information provided constitutes a fair and impartial presentation of relevant facts to aid the electorate in reaching an informed judgment regarding the bond issue or ballot measure.

(e) The incidental and minimal use of public resources by an elected state or local officer, including any state or local appointee, employee, or consultant, pursuant to this section shall not be subject to prosecution under Section 424 of the Penal Code.

Cal. Rules of Prof. Conduct 1.7 states:

“(a) A lawyer shall not, without informed written consent¹ from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.

(b) A lawyer shall not, without informed written consent* from each affected client and compliance with paragraph (d), represent

a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person,* or by the lawyer's own interests.

(c) Even when a significant risk requiring a lawyer to comply with paragraph (b) is not present, a lawyer shall not represent a client without written* disclosure of the relationship to the client and compliance with paragraph (d) where:

(1) the lawyer has, or knows* that another lawyer in the lawyer's firm* has, a legal, business, financial, professional, or personal relationship with or responsibility to a party or witness in the same matter; or

(2) the lawyer knows* or reasonably should know* that another party's lawyer is a spouse, parent, child, or sibling of the lawyer, lives with the lawyer, is a client of the lawyer or another lawyer in the lawyer's firm,* or has an intimate personal relationship with the lawyer.

(d) Representation is permitted under this rule only if the lawyer complies with paragraphs (a), (b), and (c), and:

(1) the lawyer reasonably believes* that the lawyer will be able to provide competent and diligent representation to each affected client;

(2) the representation is not prohibited by law; and

(3) the representation does not involve the assertion of a claim by one client against another client represented by the lawyer in the same litigation or other proceeding before a tribunal.

(e) For purposes of this rule, "matter" includes any judicial or other proceeding, application, request for a ruling or other determination, contract, transaction, claim, controversy, investigation, charge, accusation, arrest, or other deliberation, decision, or action that is focused on the interests of specific persons,* or a discrete and identifiable class of persons.*

Defendant moves as follows: “Defendant Dr Khaligh, moves the Court for an order to disqualify the conflicted City Attorney from representing the two independent contractors Stay Green and RAMCO. Pursuant to Rule of Professional Conduct, Government Code § 8314, and based on the Conflict of Interest, the Attorney cannot ethically represent the contractors while representing the City. Given that City authorities have affirmed these contractors are operating under contract — the City Attorney cannot legally or ethically represent these private parties using public time, fund and resources.” (Notice of Motion, p. 1, lines 19-26).

While moving party makes constant references to the “City Attorney,” it is presumed that moving party is objecting to the law firm Aleshire & Wynder, LLP from representing the City of Rancho Palos Verdes as well as Cross-Defendants RAMCO, Inc. and Staygreen, Inc. Defendant contends that a conflict of interest exists with respect to the firm's representation that acts to the detriment of Defendant.

Defendant cites to Gov. Code § 8314. However, nothing in Gov. Code § 8314 provides authority to disqualify an attorney. In addition, pursuant to Rules of Prof. Conduct 1.7, written consent is required in certain circumstances and moving party fails to show that the parties are in an adverse position such that such written consent is required. In any event, the opposing parties provided evidence to show that such written consent was in fact obtained. (Decl., William W. Wynder). Finally, as noted above, generally an individual must have an attorney/client relationship to have standing to bring a motion to disqualify. Moving party has not established the type of manifest and glaring ethical breach in order for a non-client to assert standing to maintain and prevail on a motion to disqualify counsel.

Defendant's Motion to Disqualify Counsel is denied.

Motion to Continue Motion for Summary Judgment

Code Civ. Proc., § 437c(h) states:

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other

order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due."

Defendant/Cross-Complainant moves for an order to continue the City of Rancho Palos Verdes' Motion for Summary Judgment from August 10, 2026 to October 10, 2026. The motion is made on the grounds that essential discovery needs to be completed in order to oppose the motion.

Defendant cites to the following specific discovery that needs to be completed: a land survey, depositions of the declarants who filed evidence in support of the motion for summary judgment, including Emilio Ramirez and Jesse Verra, and the City's Code Enforcement and/or Public Works witnesses.

Defendant has adequately shown that discovery in this matter remains ongoing, and critical fact discovery has not yet been completed. Defendant has adequately established that facts essential to justify the opposition exist but cannot, for reasons stated, be presented currently. Thus, the Court exercises its discretion to continue the motion to provide opposing party the opportunity to obtain the evidence that she seeks.

The motion for summary judgment or summary adjudication is continued to October 20, 2026. Any supplemental opposition and reply are to be filed and served pursuant to the time mandates of CCP § 437c(b).

Request for Rehearing

Defendant/Cross-Defendants states as follows:

"[Defendant] request[s] for rehearing of numbers of unsigned rulings, objections, and oppositions, in addition to the pending motions. Under California law, a successor judge has the authority to review, modify, or vacate the un-entered interim rulings of their predecessor to correct errors or miscarriages of justice. The request for rehearing stems from several motions originally filed before February 18, 2026. The underlying motions were continued to February 18, at which time a tentative ruling was adopted but not signed or filed prior to the case's reassignment. Dr. Khaligh subsequently preserved her rights to request a rehearing by filing a timely opposition and objections to the proposed Order on February 20, 2026." (Request for Rehearing,

p. 2, line 23 to p. 3, line 3).

This “request” document is nonsensical in parts as it is not entirely clear what Defendant is seeking or even if it constitutes a noticed motion. For example, Defendant submits no authority for the orders that she seeks. To the extent that Defendant is seeking reconsideration of any of the Court’s prior orders, she has failed to comply with CCP § 1008(a).

CCP § 1008(a) states: “When an application for an order has been made to a or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” In addition, the party seeking reconsideration must provide not just new or different facts, circumstance, or law, but a satisfactory explanation for the failure to produce it at an earlier time. See *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.

Defendant failed to meet or even attempt to meet the procedural requirements set forth in CCP § 1008(a) or *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690. The Court further notes that certain matters which the Defendant seeks a hearing on is on calendar this date rendering this portion of the request moot. Finally, many of the matters which Defendant seeks a rehearing on, or an immediate ruling on, are nonsensical.

Some attempt to understand what Defendant is attempting to accomplish from this “request” document can be gleaned from looking at the conclusion of Defendant’s “request.”

“1. Vacate and rehear all prior flawed rulings;

2. Accept and deem FILED the Defendant’s First Amended Answer and First Amended Cross Complaint as of the date of received by the Court, Feb 03, 2026;

3. Dismiss the actions currently pending against the resigned Trustee;

4. Disqualify the City Attorney from dual representations of municipality alongside of private contractors, and

5. Grant Defendant Cross-Motion for Summary Judgment, or in the alternative, deeming the previously filed combined Cross-Motion for Summary Judgment and Opposition to Plaintiffs Motion for Summary Judgment as fully operative for Court's consideration." (Request for Rehearing, p. 9, lines 16-25).

Items 1 to 2 appear to be seeking reconsideration of prior Court orders. As mentioned above, Defendant failed to meet the requirements of CCP § 1008(a). Items 3 and 4 are on calendar this date. Item 5 is nonsensical as the Court is not aware of a motion for summary judgment filed by Defendant. In any event, Defendant is free to file and serve a motion for summary judgment and schedule it on the Court's calendar pursuant to the time requirements set forth in CCP § 437c.

Thus, Defendant's "Request for Rehearing and Notice of Unresolved Motions, Objections, Oppositions, and Unsigned Tentative Ruling Issued on February 18, 2026" is denied.

Plaintiff is ordered to give notice of this ruling.